

24STCV32551 24STCV32551

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Case Number: 24STCV32551 Hearing Date: September 18, 2026 Dept: 509

Bram Sada, et al. v. American Honda Motor Co., Inc.

MOTION TO TRANSFER VENUE

MOVING PARTY: Defendant American Honda Motor Co., Inc.

RESPONDING PARTY(S): Plaintiffs Bram Sada and Maureen Sada

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a Song-Beverly action. Plaintiffs Bram Sada and Maureen Sada (Plaintiffs) allege they purchased a 2018 Honda Odyssey manufactured by American Honda Motor Co., Inc. (Defendant) which had defects and non-conformities to warranties.

Defendant now move to transfer this action to Orange County pursuant to Code of Civil Procedure, section 397(c). Plaintiffs did not originally oppose the motion.

On August 28, 2026, this matter originally came to hearing. The Court continued the matter to allow Plaintiffs to file an opposition. On September 9, 2026, Plaintiffs filed an opposition. Defendant filed a reply ON September 14, 2026.

The Court now rules considering all filings.

TENTATIVE RULING:

Defendant's Motion to Transfer Venue to Orange County is DENIED, without prejudice.

Plaintiffs are ordered to give notice, unless waived.

DISCUSSION:

Motion to Transfer Venue

I. Judicial Notice

Plaintiffs request the Court take judicial notice of Defendant's Statement of Information Corporation form. The Court declines to take judicial notice of this Exhibit as it is not relevant to the disposition of this motion. (See *Arce v. Kaiser Found. Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482 [declining to take judicial notice of irrelevant matters].)

II. Legal Standard

"Venue is determined based on the complaint on file at the time the motion to change venue is made." (*Brown v. Superior Court of Alameda County* (1984) 37 Cal.3d 477, 482.) If an action has been filed in a court other than the court designated as the proper court by statute, a defendant may, within the time allowed to respond to the Complaint, move to transfer the action to the proper court. (Code Civ. Proc. § 396b subd. (a).) Transfer is mandatory if the action was not filed in the proper court. (*Ibid.*) If venue is proper in more than one court, the plaintiff may choose where to file the action. (*Battaglia Enterprises, Inc. v. Superior Court* (2013) 215 Cal.App.4th 309, 313.) A plaintiff's choice of venue is presumptively correct, and the defendant bears the burden to demonstrate that the choice of venue is not proper on any grounds. (*Fontaine v. Superior Court* (2009) 175 Cal.App.4th 830, 836.)

III. Analysis

Defendant moves for discretionary relief to transfer the case to Orange County under Code of Civil Procedure, section 397(c) which allows for the Court to order a transfer "[w]hen the convenience of witnesses and the ends of justice would be promoted by the change."

"It is well settled that a motion for change of venue grounded upon the convenience of witnesses rests largely in the discretion of the trial court." (*Wrin v. Ohlandt* (1931) 213 Cal.158, 159.) However, when a party moves to transfer venue for the convenience of witnesses, the party must provide affidavits setting forth "the name of the witnesses, the nature of the testimony expected from each, and the reasons why the attendance of each would be inconvenient." (*Peiser v. Mettler* (1958) 50 Cal.2d 594, 607.) "Convenience of witnesses" may be shown by the fact that the residence of all witnesses is in the county to which the transfer is requested. (*Richfield Hotel Management, Inc. v. Superior Court* (1994) 22 Cal.App.4th 222, 227.)

The burden is on the moving party to establish facts justifying the transfer. (*Mission Imports, Inc. v. Superior Court* (1982) 31 Cal.3d 921, 928-929.) Where a party moves to transfer venue based on the convenience of witnesses, it must submit affidavits showing the names of each witness expected to testify for both parties, the substance of their expected testimony, whether the witness has been deposed or given a statement, the reasons why it would be inconvenient for the witnesses to appear, and the reasons why the ends of justice would be promoted by transfer to a different county. (*Juneau v. Juneau* (1941) 45 Cal.App.2d 14, 16; *Edwards v. Pierson* (1957) 156 Cal.App.2d 72, 75 ["The burden rests upon one who seeks a change of venue . . . to prove that both the convenience of witnesses and the ends of justice will be promoted thereby . . . This he must do through affidavits which contain something more than generalities and conclusions"]; *Mission Imports, supra*, 31 Cal.3d at pp. 928-929 [moving party may submit declarations containing admissible evidence in support of the motion to transfer venue.]

Here, Defendant does not meet its burden. Defendant includes no declarations containing the names of the witnesses Defendant expects to testify, the nature of the testimony, or the reason why attendance would be inconvenient. Instead, the only declaration, the declaration of Sienna (Si Hui) Lin, contains nothing more than generalities and conclusions regarding the action's ties to Orange County.

Ultimately, Defendant's argument rests on the evidence that "aside from the initial pre-delivery inspection that was completed at the sales dealership (Honda of Hollywood) and two initial routine service visits for oil and filter changes, tire rotation, etc., that were completed at Valvoline Instant Oil Change in Long Beach, the dealership that performed all material service work after plaintiff's purchase of the vehicle is Buena Park Honda, located at 6411 Beach Blvd, Buena Park, CA 90621 in Orange County. Specifically, seven (7) servicing visits were completed at Buena Park Honda." (Lin Decl. ¶5.) However, "AHM does not have employee records for Buena Park Honda, as it is an independently owned and operated dealership. It is therefore unknown by AHM where the employees live or even how to contact such employees other than through the dealership." (Lin Decl. ¶10.)

While the Court recognizes Buena Park Honda is in Orange County, there is no declarations from any potential witnesses that indicate Orange County is more convenient than Los Angeles Couty. Absent such evidence, Defendant has not carried its burden to demonstrate "the convenience of witnesses and the ends of justice would be promoted by the change." (Code of Civ. Pro. §397, subd. (c), emphasis added.) The Court is aware of the action's apparent ties to Orange County and Plaintiff's lack of opposition but "the burden of making a sufficient showing is on the moving party, and he 'must stand upon the strength of his showing rather than upon the weakness, if any, of the opposition.'" (Union Trust Life Ins. Co. v. Superior Court for Ventura County (1968) 259 Cal.App.2d 23, 28, internal citations omitted.) In the end, Defendant has not met its burden. [FN 1]

Accordingly, Defendant's Motion to Transfer Venue to Orange County is DENIED, without prejudice.

IT IS SO ORDERED.

Dated: September 18, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Additionally, there is also no adequate explanation why it took over 18 months to file this motion from the Answer of 1/21/25.

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept509@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole